

NORTHERN UTILITIES PROCUREMENT AUTHORITY

(a fictional procuring authority created for assessment purposes)

Wadi Sirhan Independent Sewage Treatment Plant

VOLUME I — INSTRUCTIONS TO BIDDERS

Tender Reference: NUPA/ISTP/2026/014

Date of Issue: 14 September 2026

Build – Own – Operate – Transfer

NOTICE. This document is a constructed artefact. The Northern Utilities Procurement Authority, the Wadi Sirhan ISTP project and every party named in this pack are invented. It exists only to test how a candidate's software handles a document set of this shape.

SECTION 1 — INTRODUCTION

- 1.1 The Northern Utilities Procurement Authority (the **Authority**) invites Proposals from prequalified Bidders for the design, financing, construction, ownership, operation, maintenance and transfer of the Wadi Sirhan Independent Sewage Treatment Plant (the **Project**) on a Build-Own-Operate-Transfer basis.
- 1.2 This Request for Proposals is issued under tender reference NUPA/ISTP/2026/014.
- 1.3 The Project comprises a sewage treatment plant of nominal capacity one hundred and twenty thousand cubic metres per day (120,000 m³/day), associated inlet and conveyance works, sludge handling facilities, and a treated effluent transmission main of approximately eighteen (18) kilometres, all as more particularly described in Volume II.
- 1.4 Only Bidders prequalified under Request for Qualification NUPA/ISTP/2025/031 and named in Appendix 1 to this Volume are eligible to submit a Proposal. A Proposal received from any other person shall be rejected without evaluation.
- 1.5 The Authority is not bound to accept the lowest or any Proposal and may terminate this procurement at any time without liability to any Bidder.

SECTION 2 — DEFINITIONS AND INTERPRETATION

- 2.1 **Addendum** means any formal amendment, clarification or supplement to the RFP Documents issued by the Authority through the Portal and numbered sequentially.
- 2.2 **Effective Date** means the date on which the Project Agreement is executed by the Authority and the Project Company.
- 2.3 **PCOD** means the Project Commercial Operation Date, as defined in Volume V.
- 2.4 **Working Day** means any day from Sunday to Thursday inclusive, other than a day declared a public holiday in the Kingdom. Where a period expressed in Working Days is to be counted backwards from a stated date, the stated date itself shall not be counted.
- 2.5 **Portal** means the Authority's electronic procurement platform at etender.nupa.gov.example.
- 2.6 **Proposal Due Date** means the date and time stated in Clause 6.1, as the same may be amended by Addendum.
- 2.7 **Project Company** means the special purpose vehicle to be incorporated in the Kingdom by the successful Bidder.
- 2.8 Headings are for convenience only and do not affect interpretation. The singular includes the plural. References to a Clause are to a Clause of this Volume unless otherwise stated.

SECTION 3 — THE RFP DOCUMENTS AND ORDER OF PRECEDENCE

- 3.1 The RFP Documents comprise: Volume I (Instructions to Bidders); Volume II (Technical Requirements); Volume III (Drawings); Volume IV (Form Sheets); Volume V (Draft Project Agreement); and every Addendum issued.
- 3.2 In the event of any conflict, ambiguity or discrepancy between or within the RFP Documents, the following order of precedence shall apply, the first named prevailing:
 - (a) the Addenda, a later Addendum prevailing over an earlier one;
 - (b) Volume I (Instructions to Bidders);
 - (c) Volume V (Draft Project Agreement);
 - (d) Volume II (Technical Requirements);
 - (e) Volume IV (Form Sheets);
 - (f) Volume III (Drawings).
- 3.3 A Bidder that identifies a conflict, ambiguity or discrepancy shall raise it as a request for clarification under Section 5. A Bidder that resolves such a conflict unilaterally does so at its own risk, and the Authority shall not be bound by the Bidder's interpretation.

- 3.4 Bidders shall satisfy themselves as to the completeness of the RFP Documents downloaded from the Portal. No claim arising from an alleged omission shall be entertained after the Proposal Due Date.

SECTION 4 — COMMUNICATIONS AND BLACKOUT

- 4.1 All communications between a Bidder and the Authority shall be made exclusively through the Portal and shall be in the English language, save where this Volume expressly requires Arabic.
- 4.2 From the date of issue of this Volume until the issue of the Preferred Bidder Notification, no Bidder, and no person acting for a Bidder, shall contact any board member, officer, employee, consultant or advisor of the Authority in relation to the Project other than through the Portal. Breach of this Clause shall result in the disqualification of the Bidder.
- 4.3 Each Bidder shall nominate a single point of contact and shall notify the Authority of any change within two (2) Working Days.

SECTION 5 — CLARIFICATIONS AND PRE-BID CONFERENCE

- 5.1 A Bidder may submit requests for clarification of the RFP Documents through the Portal. Each request shall cite the Volume, Clause and page to which it relates.
- 5.2 Requests for clarification shall be submitted no later than ten (10) Working Days before the Proposal Due Date. Requests received after that time will not be answered.
- 5.3 The Authority will publish its responses to clarification requests in the form of Addenda issued to all Bidders. No statement made orally by any person shall bind the Authority unless it is confirmed in an Addendum.
- 5.4 A Pre-Bid Conference will be held on Wednesday 30 September 2026 at 10:00 Riyadh time at the Authority's offices. Attendance by at least one authorised representative of each Bidder is mandatory. A Bidder that is not represented at the Pre-Bid Conference shall be disqualified.
- 5.5 A site visit will be offered on the day following the Pre-Bid Conference. Attendance at the site visit is optional and does not relieve a Bidder of its obligation to satisfy itself as to site conditions.

SECTION 6 — SUBMISSION OF PROPOSALS

- 6.1 Proposals shall be received by the Authority not later than **14:00 hours Riyadh time on Thursday 12 November 2026** at the address given in Appendix 3.
- 6.2 Each Proposal shall be submitted in two separately sealed and clearly marked envelopes: Envelope A (Technical Proposal) and Envelope B (Commercial Proposal). The appearance of any price, rate, or other commercial information within Envelope A shall render the Proposal non-responsive.
- 6.3 Envelope A shall be accompanied by a Bid Bond which shall remain valid for one hundred and eighty (180) days from the Proposal Due Date and shall be extended on demand where the Authority extends the period of Proposal validity.
- 6.4 The Bid Bond shall be in the amount of **SAR 4,500,000 (four million five hundred thousand Saudi Riyals)**, shall be unconditional and payable on first written demand, and shall be issued by a bank licensed to operate in the Kingdom holding a long-term credit rating of not lower than A- from a recognised international rating agency.
- 6.5 Each Proposal shall be submitted as one (1) marked original, three (3) hard copies, and one (1) searchable electronic copy on encrypted USB media. Electronic files shall be named strictly in accordance with the convention at Appendix 2. A Proposal whose electronic copy materially differs from the marked original shall be evaluated on the basis of the marked original.
- 6.6 A Proposal received after the time stated in Clause 6.1 will be rejected unopened and returned to the Bidder.
- 6.7 A Bidder may withdraw or modify its Proposal at any time before the Proposal Due Date by written notice through the Portal. No modification will be accepted thereafter.

SECTION 7 — PROPOSAL VALIDITY

- 7.1 Each Proposal shall remain open for acceptance for one hundred and fifty (150) days from the Proposal Due Date.
- 7.2 The Authority may, before expiry of the validity period, request Bidders to extend validity. A Bidder may refuse without forfeiting its Bid Bond; a Bidder that agrees shall procure a corresponding extension of its Bid Bond.

SECTION 8 — QUALIFICATION AND MANDATORY REQUIREMENTS

- 8.1 A Bidder shall be either a single entity or a consortium, in each case prequalified under the RFQ. No change to the composition, shareholding or lead member of a prequalified consortium shall be effective without the prior written consent of the Authority. An unapproved change shall result in rejection of the Proposal.
- 8.2 No firm, and no affiliate of a firm, shall participate in more than one Proposal. Participation in more than one Proposal shall cause every Proposal in which that firm or affiliate participates to be rejected.
- 8.3 The proposed EPC Contractor shall hold a valid ISO 9001:2015 quality management certificate, current as at the Proposal Due Date, issued by an accredited certification body. A copy of the certificate shall be submitted with Envelope A.
- 8.4 The Bidder shall demonstrate, on a combined basis across consortium members weighted by shareholding, (a) a consolidated tangible net worth of not less than SAR 800,000,000 as at the most recent audited financial statements, and (b) an average annual turnover over the last three (3) audited financial years of not less than SAR 1,200,000,000.
- 8.5 The Bidder shall demonstrate technical capability in the design, construction and operation of wastewater treatment facilities. The Authority will assess technical capability on the basis of the reference projects submitted under Form 4-B.¹²

¹² For the avoidance of doubt, a Bidder that does not evidence at least two (2) reference sewage treatment plants, each of nominal capacity not less than 80,000 m³/day and each having achieved commercial operation within the ten (10) years preceding the Proposal Due Date, shall be rejected without further evaluation.

- 8.6 The Bidder shall submit a Local Content Certificate issued by the competent authority evidencing a local content ratio of not less than thirty per cent (30%) for the construction phase.
- 8.7 The Bidder shall submit an executed Parent Company Guarantee from the ultimate parent company of the proposed EPC Contractor, substantially in the form set out in Form 4-D, unconditional as to the EPC Contractor's obligations during the construction period.
- 8.8 The proposed O&M Operator shall evidence not less than five (5) years of continuous operation of at least one (1) wastewater treatment facility of nominal capacity not less than 50,000 m³/day.
- 8.9 The Bidder shall submit either evidence of a current investment licence for each foreign consortium member, or a signed undertaking to obtain such licence prior to Financial Close.
- 8.10 No member of the Bidder shall be the subject of, or have been the subject of within the preceding five (5) years, any debarment by a public authority in the Kingdom. A declaration to this effect shall be given in Form 4-C.

SECTION 9 — CONTENTS OF ENVELOPE A (TECHNICAL PROPOSAL)

- 9.1 Envelope A shall contain, in the following order and separated by numbered dividers:

- (a) Form 4-A — Proposal Submission Letter;
- (b) Form 4-B — Reference Projects Schedule (one per reference project);
- (c) Form 4-C — Conflict of Interest and Debarment Declaration;
- (d) Form 4-D — Parent Company Guarantee (executed);
- (e) Form 4-E — Schedule of Deviations;
- (f) the Technical Proposal narrative;
- (g) the Bid Bond;
- (h) notarised Powers of Attorney for each signatory;
- (i) the certificates and evidence required under Section 8.

- 9.2 The Technical Proposal narrative shall not exceed one hundred and twenty (120) pages of A4, excluding the Form Sheets and the appendices expressly permitted by Volume II. Pages in excess of the limit will be removed before evaluation and will not be scored.
- 9.3 Form 4-A shall be signed by a person holding a notarised Power of Attorney from the lead member of the Bidder. An unsigned or improperly executed Form 4-A shall render the Proposal non-responsive.
- 9.4 Form 4-C shall be completed **in the Arabic language**, signed and stamped by an authorised signatory of **each** member of the Bidder. A translation may be attached for convenience but the Arabic text shall govern. Failure to submit a complete and properly executed Form 4-C for each member shall render the Proposal non-responsive.
- 9.5 A separate Form 4-B shall be submitted for each reference project relied upon under Clause 8.5, accompanied by a client completion certificate. A reference project not evidenced by a completion certificate will be disregarded.
- 9.6 Form 4-E shall list every deviation, qualification or reservation to Volume V. A Proposal that states 'no deviations' in Form 4-E while containing a qualification elsewhere in the Proposal shall be treated as non-responsive.
- 9.7 The Technical Proposal shall address, as a minimum, the process design, the construction methodology and programme, the operations and maintenance philosophy, the health and safety plan, the environmental and social management approach, and the organisation and key personnel.

SECTION 10 — CONTENTS OF ENVELOPE B (COMMERCIAL PROPOSAL)

- 10.1 Envelope B shall contain only (a) Form 4-F (Financial Proposal Schedule) and (b) the Financial Model. No other document shall be placed in Envelope B.
- 10.2 The Bidder shall quote a single Availability Payment expressed in Saudi Riyals per annum, calculated in accordance with the payment mechanism at Volume V Clause 29.
- 10.3 The Financial Model shall be submitted in unlocked, fully formula-linked Microsoft Excel format, without macros and without hard-coded values in calculation cells, and shall be accompanied by an opinion from an independent model auditor addressed to the Authority.
- 10.4 All prices shall be exclusive of value added tax and shall be stated in Saudi Riyals.
- 10.5 Any conditional price, price subject to adjustment other than as provided in Volume V, or alternative price shall render the Proposal non-responsive. An alternative technical solution may be submitted only as a supplement to a fully compliant base Proposal and will be considered at the Authority's sole discretion.
- 10.6 The Bidder shall submit with Form 4-F a schedule of the principal financing assumptions underlying the Availability Payment, including the assumed debt tenor, margin and gearing.

SECTION 11 — EVALUATION

- 11.1 Proposals will be evaluated in three stages: (i) a responsiveness and mandatory compliance check on a pass or fail basis; (ii) technical evaluation of those Proposals that pass stage (i); and (iii) commercial evaluation of those Proposals that pass stage (ii).
- 11.2 Proposals reaching stage (iii) will be ranked on a combined score calculated on a weighting of **sixty per cent (60%) technical and forty per cent (40%) commercial**.
- 11.3 A Proposal scoring less than seventy (70) marks out of one hundred (100) at the technical evaluation shall not proceed to commercial evaluation and its Envelope B shall be returned unopened.
- 11.4 The Authority reserves the right, but is under no obligation, to invite one or more Bidders to submit a Best and Final Offer.
- 11.5 The Authority may seek written clarification of any Proposal. A response to a clarification shall not change the Availability Payment quoted; any response that does so shall render the Proposal non-responsive.

Table 1-1 — Technical evaluation criteria

Ref	Criterion	Marks
A	Process design, treatment performance and compliance with Volume II	25
B	Construction methodology, programme and interface management	20
C	Operations and maintenance philosophy and lifecycle strategy	20
D	Environmental and social management	15
E	Organisation, key personnel and consortium governance	10
F	Health, safety and security of supply	10
	Total	100

SECTION 12 — AWARD, CONCESSION AND CLOSE

- 12.1 The Authority will notify the successful Bidder as Preferred Bidder. The concession period shall be **twenty-five (25) years commencing on the Project Commercial Operation Date**, following which the Project shall transfer to the Authority in accordance with Volume V.
- 12.2 The Preferred Bidder shall achieve Commercial Close within one hundred and twenty (120) days, and Financial Close within two hundred and seventy (270) days, of the date of the Preferred Bidder Notification. Failure to achieve Financial Close by the long-stop date entitles the Authority to call the Bid Bond and to proceed with the next ranked Bidder.
- 12.3 A standstill period of ten (10) Working Days shall apply between the Preferred Bidder Notification and execution of the Project Agreement.
- 12.4 Unsuccessful Bidders may request a debrief within twenty (20) Working Days of notification.

SECTION 13 — GENERAL

- 13.1 Each Bidder bears its own costs of preparing and submitting its Proposal. The Authority shall not reimburse any cost in any circumstance.
- 13.2 The RFP Documents are confidential and shall not be disclosed other than to a Bidder's members, advisors and financiers on a need-to-know basis and subject to equivalent confidentiality obligations.
- 13.3 This procurement and the resulting Project Agreement are governed by the laws of the Kingdom. Disputes shall be resolved in accordance with Volume V Clause 44.
- 13.4 The Authority may at its discretion cancel, suspend or re-issue this procurement at any time.

APPENDIX 1 — PREQUALIFIED BIDDERS

The following Bidders were prequalified under RFQ NUPA/ISTP/2025/031. All names are invented for the purposes of this assessment pack.

No	Lead Member	Consortium Members
1	Barzan Utilities Holding	Barzan Utilities Holding (lead); Helvion Water Technologies; Tarfa Construction Company
2	Qattara Infrastructure Partners	Qattara Infrastructure Partners (lead); Meridian Process Engineering; Sahn Contracting
3	Northwind Environmental Group	Northwind Environmental Group (lead); Calder & Voss Engineering
4	Aridis Capital	Aridis Capital (lead); Pallas Water Operations; Dune Ridge Civil Works
5	Kalim Industrial Investments	Kalim Industrial Investments (lead); Orbita Membranes; Wadi Stone Contracting

APPENDIX 2 — ELECTRONIC FILE NAMING CONVENTION

Files shall be named: ISTP2026-014_[BIDDER]_[ENV]_[VOL]_[NN]_[YYYYMMDD].pdf where [ENV] is A or B, [VOL] is the volume or form reference, and [NN] is a two-digit sequence. Folder depth shall not exceed three levels. File names shall not exceed 120 characters. Non-conforming file names will be corrected by the Authority at the Bidder's risk.

APPENDIX 3 — SUBMISSION ADDRESS

Tender Box 4, Ground Floor, Northern Utilities Procurement Authority, Administrative Building C, Sakaka. Marked: **'NUPA/ISTP/2026/014 — NOT TO BE OPENED BEFORE 14:00 ON THE PROPOSAL DUE DATE'**.